

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 26-04
ORLEANS INTERNATIONAL, INC.

v.

HAPAG LLOYD AG

**COMPLAINANT’S MOTION TO AMEND ITS AMENDED
COMPLAINT TO CONFORM TO THE CHARGE COMPLAINT RULE**

Pursuant to the September 11, 2026 Order Following Status Conference (the “Order”) issued by the Presiding Officer in this case, the Federal Maritime Commission’s (the “Commission” or “FMC”) recently issued Final Rule on *Charge Complaint Procedures*, 91 Fed. Reg. 56053 (Sept. 1, 2026) (the “Final Rule”), and Rule 66 of the FMC’s Rules of Practice and Procedure (the “Rules”), 46 C.F.R. Section 502.66, Complainant Orleans International, Inc. (“Orleans” or “Complainant”), by and through its undersigned attorneys, hereby moves for permission from the Presiding Officer to file its proposed Verified Second Amended Complaint and accompanying exhibits, attached hereto as **Exhibit A** (the “Second Amended Complaint”), against Respondent Hapag Lloyd AG (“Respondent” or “Hapag”).¹

I. LEGAL STANDARD

Rule 66(a) of the Rules, 46 C.F.R. Section 502.66(a), provides:

Amendments or supplements to any pleading (complaint, Order of Investigation and Hearing, counterclaim, crossclaim, third-party complaint, and answers thereto)

¹ For ease of reference, a redline comparison of the Second Amended Complaint against Complainant’s Verified Amended Complaint previously filed in this case is included as Exhibit 1 to the Second Amended Complaint.

will be permitted or rejected, either in the discretion of the Commission or presiding officer. No amendment will be allowed that would broaden the issues, without opportunity to reply to such amended pleading and to prepare for the broadened issues. The presiding officer may direct a party to state its case more fully and in more detail by way of amendment.

The Rules do not specify criteria for permitting or rejecting proposed amended pleadings, but Rule 12 of the Rules provides that “[i]n proceedings under this part, for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.” 46 C.F.R. Section 502.12. Rule 15(a)(2) of the Federal Rules of Civil Procedure provides that the court—here, the Presiding Officer—“should freely give leave [to amend a pleading] when justice so requires.” Fed. R. Civ. P. 15(a)(2).

II. PROCEDURAL POSTURE

Complainant previously filed its Verified Amended Complaint on June 12, 2026 pursuant to the Presiding Officer’s May 29, 2026 Order Denying in Part Motion to Dismiss and Allowing Complainant to File an Amended Complaint. Pursuant to Rule 71 of the Rules, 46 C.F.R. Section 502.71, on September 16, 2026 counsel for Complainant and Respondent conferred on the proposed Second Amended Complaint and whether Respondent would consent to or oppose the instant motion, and on September 17, 2026 the undersigned counsel for Complainant emailed counsel for Respondent an unverified draft of the proposed Second Amended Complaint. On September 18, 2026, Respondent replied via email that it does not consent to the filing of the proposed Amended Complaint. No other motions are currently pending in this case.

III. ARGUMENT

Consistent with the Presiding Officer’s Order, Complainant’s proposed Second Amended Complaint does not add any additional respondents to this proceeding or change the nature of the claims previously alleged in Complainant’s original Verified Complaint and Verified Amended

Complaint. Instead, it simply conforms the structure of Complainant's claims and the exhibits that it attaches to the guidance provided and formal requirements articulated in the FMC's September 1, 2026 Final Rule. Specifically, the Second Amended Complaint delineates that Complainant is seeking both (1) reparations pursuant to 46 U.S.C. Section 41305 under the FMC's existing formal complaint procedure, 46 U.S.C. Section 41301, with respect to detention and demurrage charges paid by Complainant that were assessed by Respondent *prior to* the enactment of the Ocean Shipping Reform Act of 2022, Pub. L. No. 117-146, 136 Stat. 1272 (Jun. 16, 2022) ("OSRA 2022"), as well as (2) refunds pursuant to 46 U.S.C. Section 41310's charge complaint procedure with respect to detention and demurrage charges assessed by Respondent that were paid by Complainant *after* the enactment of OSRA 2022.

Consistent with that delineation, the Second Amended Complaint also divides the information previously listed in Exhibit 2 to the Verified Amended Complaint into two separate exhibits, one containing the bill of lading numbers, container numbers, charge amounts, and other information for the pre-OSRA 2022 charges at issue in this case, and the other containing the same information for the post-OSRA 2022 charges at issue in this case. Finally, consistent with the Final Rule's instructions and the FMC's charge complaint procedure, the Second Amended Complaint also includes as an additional exhibit copies of the invoices for the post-OSRA 2022 charges at issue in this case.²

This proposed amendment is being timely brought pursuant to the Presiding Officer's Order in response to an FMC Final Rule issued just days ago, at a time when the parties are just getting underway with discovery, and long before merits briefing. The Second Amended

² As indicated in Complainant's Verified Amended Complaint, *see* Verified Am. Compl. ¶ 61, Dkt. No. 22, Complainant previously provided Respondent with copies of the invoices relating to *all* of the charges at issue in this case, both pre- and post-OSRA 2022, and intends to produce all such invoices in discovery in this case.

Complaint does not impermissibly broaden the issues in the case or enlarge the scope of issues subject to discovery, and will not unduly prejudice Respondent; indeed, Respondent has been aware of Complainant's request to proceed under the FMC's charge complaint procedure since the service of the initial Verified Complaint in this case. *See* Verified Compl. at 16–17 n.1, Dkt. No. 1; Verified Am. Compl. at 23 n.2, Dkt. No. 22 (both explicitly requesting that Complainant's claims in this case be handled pursuant to 46 U.S.C. Section 41310's charge complaint procedure).

There also is no dilatory motive underlying this motion, which is being filed pursuant to the Presiding Officer's Order and the FMC's Final Rule. To the contrary, proceeding in part pursuant to the FMC's charge complaint procedure may be more streamlined and efficient than the alternative, and should not, in and of itself, cause any delay to merits briefing or the initial decision in this case.

CONCLUSION

For the foregoing reasons, Complainant respectfully moves the Presiding Officer in this case for an order permitting Complainant to file and proceed in this case on the basis of the proposed Verified Second Amended Complaint and exhibits filed herewith.

Dated: September 18, 2026

Respectfully submitted,

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Certificate of Service

I hereby certify that I have this day served the foregoing document and its exhibits upon Respondent Hapag Lloyd AG by emailing copies of those documents to their counsel of record listed below:

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Dated: September 18, 2026

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